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2nd Session of the 60th Legislature (2026)

ENGROSSED SENATE
BILL NO. 2011

By: Stanley and Jett of the
Senate

and

Kerbs of the House

An Act relating to assault and battery; amending Section 10, Chapter 366, O.S.L. 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20J), which relates to Class B5 offenses; conforming reference to certain offense; amending Section 11, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20K), which relates to Class B6 offenses; conforming reference to certain offense; amending 21 O.S. 2021, Section 650.2, as amended by Section 153, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650.2), which relates to assault and battery upon Department of Corrections, Department of Human Services, or Office of Juvenile Affairs employee or contractor; modifying scope of certain offenses; updating statutory language and references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 10, Chapter 366, O.S.L. 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20J), is amended to read as follows:

1 Section 20J. A. ~~Upon the effective date of this act~~ On or
2 after January 1, 2026, Class B5 shall include the following criminal
3 offenses:

4 1. Second or subsequent conviction for assault and battery
5 against a current or former intimate partner or a family or
6 household member, as provided for in subsection C of Section 644 of
7 ~~Title 21 of the Oklahoma Statutes~~ this title;

8 2. Second or subsequent conviction for domestic abuse committed
9 in the presence of a child, as provided for in subsection G of
10 Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 3. Assault and battery by strangulation or attempted
12 strangulation against an intimate partner or a family or household
13 member, as provided for in subsection J of Section 644 of ~~Title 21~~
14 ~~of the Oklahoma Statutes~~ this title;

15 4. Aggravated assault and battery, as provided for in Section
16 646 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 5. Battery or assault and battery upon a police officer,
18 sheriff, deputy sheriff, highway patrolman, corrections personnel,
19 or other state peace officer, as provided for in subsection B of
20 Section 649 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 6. Striking or mistreating a police dog or police horse during
22 the commission of a misdemeanor or felony, as provided for in
23 subsection D of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~
24 this title;

1 7. Disfiguring, disabling, or killing a police dog or police
2 horse during the commission of a misdemeanor or felony, as provided
3 for in subsection C of Section 649.2 of ~~Title 21 of the Oklahoma~~
4 ~~Statutes~~ this title;

5 8. Battery or assault and battery resulting in bodily injury to
6 any employee or contracted employee of the Office of Juvenile
7 Affairs ~~or~~, residential facility, or county detention center as
8 provided for in subsection E of Section 650.2 of ~~Title 21 of the~~
9 ~~Oklahoma Statutes~~ this title;

10 9. Assault with intent to kill, as provided for in Section 653
11 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 10. Assault with intent to commit any felony, as provided for
13 in Section 681 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 11. Manslaughter in the second degree, as provided for in
15 Section 716 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 12. Owning a mischievous animal that kills a human being, as
17 provided for in Section 717 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 13. Causing, aiding, abetting, or encouraging a minor to commit
20 or participate in committing a felony offense, as provided for in
21 subsection C of Section 856 of ~~Title 21 of the Oklahoma Statutes~~
22 this title;

23 14. Causing, aiding, abetting, encouraging, soliciting, or
24 recruiting a minor to participate, join, or associate with any

1 criminal street gang, as provided for in subsection D of Section 856
2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 15. Committing a gang-related offense as a condition of
4 membership in a criminal street gang, as provided for in Section
5 856.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 16. Stalking, as provided for in subsection B of Section 1173
7 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 17. Second or subsequent conviction of stalking or committing
9 the act of stalking within ten (10) years of the completion of
10 sentence for a prior conviction of stalking, as provided for in
11 subsection C of Section 1173 of ~~Title 21 of the Oklahoma Statutes~~
12 this title;

13 18. Intentionally or recklessly spreading an infectious
14 disease, as provided for in Section 1192.1 of ~~Title 21 of the~~
15 ~~Oklahoma Statutes~~ this title;

16 19. Entering the premises of another while masked or disguised
17 with the intent to inflict bodily injury or injury to property, as
18 provided for in Section 1302 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 20. Assault with a dangerous weapon while masked or in
21 disguise, as provided for in Section 1303 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

1 21. Unlawful assembly for the purpose of engaging in a riot, as
2 provided for in Section 1320.3 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 22. Acts of cruelty to animals, as provided for in Section 1685
5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 23. Instigating or encouraging any cockfight, as provided for
7 in Section 1692.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 24. Keeping a pit or other place or knowingly providing
9 equipment or facilities for cockfighting, as provided for in Section
10 1692.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 25. Servicing or facilitating a cockfight, as provided for in
12 Section 1692.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 26. Owning, possessing, keeping, or training any bird for
14 cockfighting, as provided for in Section 1692.5 of ~~Title 21 of the~~
15 ~~Oklahoma Statutes~~ this title;

16 27. Instigating or encouraging any fight between dogs, as
17 provided for in Section 1694 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 28. Keeping a house, pit, or other place, or providing any
20 equipment or facilities to be used for any fight between dogs, as
21 provided for in Section 1695 of ~~Title 21 of the Oklahoma Statutes~~
22 this title;

1 29. Acting or performing any service in the furtherance of or
2 facilitating any dogfight, as provided for in Section 1696 of ~~Title~~
3 ~~21 of the Oklahoma Statutes~~ this title;

4 30. Owning, possessing, keeping, or training any dog with
5 intent to have such dog fight another dog, as provided for in
6 Section 1697 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7 31. Failing to stop for an accident resulting in a nonfatal
8 injury to another person, as provided for in Section 10-102 of Title
9 47 of the Oklahoma Statutes;

10 32. Personal injury accident while driving or operating a motor
11 vehicle under the influence of alcohol or other intoxicating
12 substance while having a previous conviction for driving or
13 operating a motor vehicle while under the influence of alcohol or
14 other intoxicating substance, as provided for in paragraph 2 of
15 subsection A of Section 11-904 of Title 47 of the Oklahoma Statutes;

16 33. Failure to register as a sex offender, as provided for in
17 Section 583 of Title 57 of the Oklahoma Statutes;

18 34. Furnishing false or misleading information in the
19 registration required by the Sex Offenders Registration Act, as
20 provided for in Section 586 of Title 57 of the Oklahoma Statutes;

21 35. Failure to comply with the Sex Offenders Registration Act,
22 as provided for in subsection A of Section 587 of Title 57 of the
23 Oklahoma Statutes;

1 36. Failure to comply with established guidelines of ~~global-~~
2 ~~positioning-system~~ Global Positioning System (GPS) monitoring
3 pursuant to the provisions of the Sex Offenders Registration Act, as
4 provided for in subsection B of Section 587 of Title 57 of the
5 Oklahoma Statutes;

6 37. Temporarily or permanently residing within a two-thousand-
7 foot radius of a public or private school site or other listed
8 places by a person required to register pursuant to the Sex
9 Offenders Registration Act, as provided for in subsection A of
10 Section 590 of Title 57 of the Oklahoma Statutes;

11 38. Residing with a minor child after being convicted of an
12 offense that involved a minor child by a person required to register
13 pursuant to the Sex Offenders Registration Act, as provided for in
14 subsection B of Section 590 of Title 57 of the Oklahoma Statutes;

15 39. Two or more sex offenders residing together in a dwelling
16 during the term of registration as a sex offender, as provided for
17 in subsection A of Section 590.1 of Title 57 of the Oklahoma
18 Statutes; and

19 40. Establishing, leasing, operating, or owning any structure
20 where persons required to register pursuant to the Sex Offenders
21 Registration Act are allowed to reside, as provided for in
22 subsection E of Section 590.1 of Title 57 of the Oklahoma Statutes.
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1 B. Any person convicted of a Class B5 criminal offense set
2 forth in this section shall be punished in accordance with the
3 corresponding penalties provided for in the Oklahoma Statutes.

4 SECTION 2. AMENDATORY Section 11, Chapter 366, O.S.L.
5 2024 (21 O.S. Supp. 2025, Section 20K), is amended to read as
6 follows:

7 Section 20K. A. ~~Upon the effective date of this act~~ On or
8 after January 1, 2026, Class B6 shall include the following criminal
9 offenses:

10 1. Striking, tormenting, mistreating, or administering a
11 nonpoisonous desensitizing substance to a police dog or police
12 horse, as provided for in subsection A of Section 649.1 of ~~Title 21~~
13 ~~of the Oklahoma Statutes~~ this title;

14 2. Interfering with the lawful performance of a police dog or
15 police horse, as provided for in subsection B of Section 649.1 of
16 ~~Title 21 of the Oklahoma Statutes~~ this title;

17 3. Harming, torturing, injuring, disabling, or otherwise
18 mistreating or killing a service animal during the commission of a
19 misdemeanor or felony offense, as provided for in subsection D of
20 Section 649.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 4. Assault, battery, or assault and battery upon a Department
22 of Corrections employee by a person in the custody of the Department
23 of Corrections, as provided for in subsection A of Section 650.2 of
24 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 5. Assault, battery, or assault and battery upon an employee of
2 a private prison contractor by a person incarcerated in an
3 institution operated by a private prison contractor, as provided for
4 in subsection B of Section 650.2 of ~~Title 21 of the Oklahoma~~
5 ~~Statutes~~ this title;

6 6. Aggravated assault and battery upon a Department of Human
7 Services employee or contractor, as provided for in subsection C of
8 Section 650.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 7. Assault, battery, or assault and battery upon an employee of
10 the Office of Juvenile Affairs or contracted employee of a county
11 detention facility pursuant to a contract with the Office of
12 Juvenile Affairs by a person in the custody of the Office of
13 Juvenile Affairs, as provided for in subsection D of Section 650.2
14 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 8. Assault, battery, or assault and battery upon a medical care
16 provider, as provided for in Section 650.4 of ~~Title 21 of the~~
17 ~~Oklahoma Statutes~~ this title;

18 9. Assault, battery, or assault and battery upon an officer of
19 the court, witness, or juror, as provided for in subsection B of
20 Section 650.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 10. Aggravated assault and battery upon a school employee, as
22 provided for in subsection C of Section 650.7 of ~~Title 21 of the~~
23 ~~Oklahoma Statutes~~ this title;

1 11. Assault, battery, or assault and battery upon an employee
2 of a facility maintained by the Office of Juvenile Affairs, a
3 facility maintained by a private contractor, juvenile detention
4 center, or juvenile bureau, as provided for in Section 650.8 of
5 ~~Title 21 of the Oklahoma Statutes~~ this title;

6 12. Throwing, transferring, or placing any feces, urine, semen,
7 saliva, or blood upon an employee of the state, a county, or a city,
8 as provided for in Section 650.9 of ~~Title 21 of the Oklahoma~~
9 ~~Statutes~~ this title;

10 13. Medical battery, as provided for in Section 650.11 of ~~Title~~
11 ~~21 of the Oklahoma Statutes~~ this title; and

12 14. Child endangerment, as provided for in Section 852.1 of
13 ~~Title 21 of the Oklahoma Statutes~~ this title.

14 B. Any person convicted of a Class B6 criminal offense set
15 forth in this section shall be punished in accordance with the
16 corresponding penalties provided for in the Oklahoma Statutes.

17 SECTION 3. AMENDATORY 21 O.S. 2021, Section 650.2, as
18 amended by Section 153, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
19 2025, Section 650.2), is amended to read as follows:

20 Section 650.2. A. Every person in the custody of the ~~Oklahoma~~
21 Department of Corrections who, without justifiable or excusable
22 cause, knowingly commits any assault, battery, or assault and
23 battery upon the person of a Department of Corrections employee
24 while ~~said~~ the employee is in the performance of his or her duties

1 shall, upon conviction ~~thereof~~, be guilty of a Class B6 felony
2 offense.

3 B. Every person incarcerated in an institution operated by a
4 private prison contractor, pursuant to Section 561, 563.1, or 563.2
5 of Title 57 of the Oklahoma Statutes, who, without justifiable or
6 excusable cause, knowingly commits any assault, battery, or assault
7 and battery upon the person of an employee of the contractor while
8 ~~said~~ the employee is in the performance of his or her duties shall,
9 upon conviction ~~thereof~~, be guilty of a Class B6 felony offense.

10 C. Every person in the custody of the Department of Human
11 Services who, without justifiable or excusable cause, knowingly
12 commits any aggravated assault and battery upon the person of a
13 Department of Human Services employee, or a person contracting with
14 the Department to provide services, while the employee or contractor
15 is in the performance of his or her duties shall, upon conviction
16 ~~thereof~~, be guilty of a Class B6 felony offense.

17 D. Every person in the custody of the Office of Juvenile
18 Affairs who, without justifiable or excusable cause, knowingly
19 commits any assault, battery, or assault and battery upon the person
20 of an employee of the Office of Juvenile Affairs or a contracted
21 employee of a county detention facility pursuant to a contract with
22 the Office of Juvenile Affairs while ~~said~~ the employee or contracted
23 employee is in the performance of his or her duties shall, upon
24 conviction ~~thereof~~, be guilty of a Class B6 felony offense.

1 E. Every person in the custody of the Office of Juvenile
2 Affairs who, without justifiable or excusable cause, knowingly
3 commits any battery or assault and battery resulting in bodily
4 injury to any employee of the Office of Juvenile Affairs ~~or,~~
5 employee of any residential facility, or contracted employee of a
6 county detention center pursuant to a contract with the Office of
7 Juvenile Affairs while ~~said~~ the employee or contracted employee is
8 in the performance of his or her duties of employment shall, upon
9 conviction ~~thereof~~, be guilty of a Class B5 felony offense. The
10 fine for a violation of this subsection shall not be less than Five
11 Hundred Dollars (\$500.00) nor more than Five Thousand Dollars
12 (\$5,000.00), which may be imposed whether or not a period of
13 incarceration is imposed.

14 SECTION 4. This act shall become effective November 1, 2026.

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16 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
17 OVERSIGHT, dated 04/14/2026 - DO PASS.
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